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PERU

Human Rights Developments

Amid mounting international criticism of his government's interference in the judiciary and covert activities to intimidate the opposition and the press, President Alberto Fujimori continued to prepare the ground for his second reelection in polls scheduled for the year 2000. Although Fujimori kept his opponents guessing about his intention to stand, his hitherto successful efforts to surmount constitutional obstacles to re-election, and his rising popularity in opinion polls, made his candidacy seem almost inevitable.

A welter of complaints against Peru before the Inter-American Commission on Human Rights concerning gross violations of human rights committed by government agents during the guerrilla insurgency, as well as illegal intelligence activities aimed at silencing political and press adversaries, were a deep embarrassment to the Fujimori government. They included allegations that Fujimori advisor Vladimiro Montesinos, the de facto head of the National Intelligence Service (Servicio Nacional de Inteligencia, SIN), played a role in planning kidnappings and murders. The SIN was also implicated in more recent violations of civil and political rights. A key case involved the impeachment and dismissal of three members of the Constitutional Court in 1997 for issuing a ruling questioning Fujimori's constitutional right to stand for a third term. In December 1998, the Inter-American Commission called for the judges' reinstatement, but after the failure of attempts at a friendly settlement despite additional time given to Peru, the commission forwarded the case to the Inter-American Court of Human Rights.

Faced with mounting attention from the Inter-American Commission and Inter-American Court, Peru took the unprecedented step of withdrawing from the jurisdiction of the Inter-American Court. The move took place after the court ruled in June that four Chileans sentenced to life imprisonment for treason by a "faceless" military court had been tried unfairly, ordering that they be granted a new trial. The European Union, the United States, and members of the international human rights movement criticized the Peruvian government for closing a vital avenue of redress to which its citizens were entitled against violations of the American Convention on Human Rights. Fujimori claimed, without any grounds or justification, that implementation of the court's decision would mean the release of thousands of convicted terrorists.

The government continued to face sporadic armed activity by remnants of the Shining Path (Sendero Luminoso) guerrilla group, now largely confined to remote regions of the departments of San Martín, Huánuco, Ucayali, Junín, and Ayacucho. On June 6, state-of-emergency regulations were lifted in all of metropolitan Lima. They had been in force for thirteen years in parts of the city, except during elections. However, constitutional guarantees regarding the inviolability of the home and freedom of movement continued to be limited by states of emergency affecting large regions of the national territory, including areas recently unaffected by serious guerrilla attacks.

However, the Shining Path was not yet a spent force. On May 28, more than forty Shining Path guerrillas arrived in four trucks in the town of Uchiza in the Upper Huallaga region of San Martín. After attempting to break into the National Bank, which was closed, the attackers were surprised by the police and reportedly opened fire indiscriminately, killing Jesús Espinoza León, a teacher and trade unionist, schoolchildren Ceriño Herrada Valverde and Guiliana Fasabi, and a police bank guard. After

a gun battle with police, the attackers fled when police and army reinforcements arrived. One of the truck drivers forced by the guerrillas to drive them to Uchiza was reportedly shot and wounded while trying to escape his captors. During the same week, a survivor of a Shining Path attack in the community of Yanayac, in the department of Huancavelica, told reporters how about fifty guerrillas assembled local people into the main square and shot to death five members of the town's civil defense patrol after giving them a "popular trial." On July 14, police and army troops arrested Oscar Ramírez Durand, also known as Feliciano, the Shining Path's best-known leader, in the Andean village of Cochabamba, Junín department. President Fujimori advised that the arrest was imminent days before it occurred, and was pictured personally supervising the operation. More than forty journalists were flown in advance to the area to cover a press conference at which the prisoner was exhibited.

Hundreds of Peruvians unjustly convicted or facing trial on terrorist offenses remained in high-security prisons facing an extremely harsh prison regime. The so-called faceless courts that conducted their trials, which violated rights to defense and due process, were abolished in October 1997 after tireless campaigning by Peruvian human rights groups and repeated expressions of concern by the United Nations Human Rights Committee and the Inter-American Commission on Human Rights.

By August, the special Ad-hoc Commission, formed by President Fujimori in 1996 to review cases and recommend candidates for presidential pardon, had obtained the release of 469 innocent prisoners. It also secured agreement in November 1998 for the criminal record of the beneficiaries to be wiped clean, and any ancillary legal proceedings dropped. Human rights organizations, however, had lists of hundreds of other innocent prisoners with applications in the pipeline. During the first eight months of 1999, Fujimori authorized only seven pardons out of more than fifty cases forwarded to him by the three-member commission, which reached all its decisions by consensus. Human rights groups that filed cases before the commission were convinced, however, that the commission was actually being stricter in its evaluation of cases. They claimed that the president was holding up cases in which people had been convicted for cooperating with guerrilla forces against their will or under coercion, a fate suffered by thousands of Peruvians in rural areas during the armed conflict. In an interview in July, the Peruvian ombudsman, Jorge Santistevan, who was a member of the commission, said that the commission would publish a report at the close of its term on December 31 listing the people it had recommended for pardon and who remained in prison.

According to estimates published by the ombudsman in September, more than 5,000 peasants whose lives were disrupted by guerrilla incursions during the armed conflict were still wanted for arrest and questioning on charges of assisting the insurgents. A study conducted by the Institute of Legal Defense (Instituto de Defensa Legal, IDL), a nongovernmental human rights group, revealed that high courts in three departments alone (Junín, Lambayeque, and Cusco) were processing terrorism charges against 3,002 people on suspicion of collaborating with the guerrillas in the 1980s and early 1990s. More than three-quarters were incriminated solely on the basis of statements by suspects held incommunicado in police custody, and many had faced the possibility of arrest for years. A number of court decisions in these cases, however, were encouraging. In July, a specialized court for crimes of terrorism dismissed charges and canceled arrest warrants against 108 peasants from Chungui, Ayacucho, following a hearing in which the court acknowledged that they had been coerced into collaborating with Shining Path at risk of death. In early August, the same judge, Marcos Ibazeta Marino, ordered charges and proceedings dropped against eighty-four peasants from Paccucha, Apurímac department, who had been accused in similar circumstances. Hundreds of similar cases remained unresolved.

Torture of suspects in police custody continued to be widespread. For instance, on December 18, 1998, Marine officers at the naval base in Aguaytía, Ucayali department, beat tradesman Raúl Teobaldo Andahua while he was under questioning for a terrorist offense, tortured him by inserting a stick into his anus, and left him unconscious. On the following day he was allegedly given electric shocks and forced to sign a self-incriminating statement. The Marines handed him over to the anti-terrorism police who set him free after he was able to establish his innocence. However, a local prosecutor investigating Andahua's complaint about his ordeal was reported to have classified the case as one of minor injury, despite a law introduced in March 1998 that typifies torture as a crime and prescribes a maximum sentence of twenty years of imprisonment. Many torture victims were ordinary criminal suspects held for questioning in police lockups, and there were also reports of beatings by prison guards. On January 18, a guard beat Pablo Pascuala Espinoza Lome to death in the Yanamilla prison in

Ayacucho after he was found drinking chicha , a local alcoholic brew. He was found to have a ruptured spleen and to have suffered internal hemorrhaging. The case was one of several being investigated by criminal courts under the new anti-torture law.

Human rights groups documented several cases of brutal ill-treatment of military conscripts. Eighteen-year-old Jaime Palacio Sánchez, who enlisted in April at the Huaraz military base recruiting office, was transferred to Fort Coloma in Tumbes, on Peru's northern border with Ecuador. Ten days later he was taken to the emergency room in a Tumbes hospital suffering from what authorities said was tuberculosis, although his induction medical check had reported him to be fit. He died on the following day, apparently from torture. It transpired that six days after his enlistment Palacio and Elvis López Tuya, a friend, had fled the base to escape the ill-treatment both had suffered. They were quickly intercepted and taken back to the base. According to López's affidavit, they were held completely naked for two days without food, and later taken to the store where a group of soldiers savagely beat them. An autopsy gave the cause of Palacios' death as cerebral and pulmonary edema, and noted that his head and body were severely bruised. Nine soldiers and recruits died between January and April in military bases in circumstances that had not been satisfactorily clarified.

A covert campaign to intimidate opposition journalists, believed by human rights groups and the journalists themselves to have been conceived and implemented by the National Intelligence Service on the orders of Vladimir Montesinos, brought worldwide attention to the issue of press freedom in Peru. During the opening months of 1999 both the Inter-American Press Society (Sociedad Interamericana de Prensa, SIP) and the special rapporteur on freedom of expression of the Organization of American States, Santiago Cantón, visited Peru. Both organizations later issued reports condemning the harassment and intimidation of journalists. The special rapporteur had access to copies of secret intelligence documents proving espionage and harassment of a large group of influential journalists.

The case of Israeli-born magnate Baruch Ivcher, former owner of Frecuencia Latina-Channel 2 television, who in 1997 was stripped of his Peruvian citizenship and of his shares in the company in reprisal for broadcasting information on human rights violations and corruption implicating Montesinos and the SIN, had particular resonance in the United States. At the end of April, Ivcher revealed to the Peruvian press the contents of secret intelligence documents dating from 1996 and 1997 and describing plans to spy on and infiltrate four television stations, as well as to carry out surveillance on Alejandro Miró Quesada, director of the daily El Comercio, and Gustavo Mohme, director of the daily La República , among other journalists. President Fujimori categorically denied the allegations. On June 18, a tax court found Julio Sotelo Casanova, former general manager of Channel 2, guilty of fraud and illegally altering company documents to transfer shares in the company to Ivcher's daughters. The charges, apparently without any merit, appeared to be motivated entirely by Sotelo's former role as Ivcher's associate in the company. Sotelo, who was said to be in poor health, was serving his sentence in San Jorge prison.

Well-known journalists critical of the Fujimori government were still the subject of hostile coverage in pro-government media outlets they believed to be covertly run by the SIN. A Miami-based Internet site directed by Héctor Ricardo Faisal Fracalossi, an Argentinean astrologer who was reported to have served formerly in the Argentinean army, featured libelous profiles believed by his targets to be sourced from intelligence reports. The organization responsible for the site, the Association for the Defense of the Truth (Asociación Pro-Defensa de la Verdad, APRODEV), mimicked the acronym of the nongovernmental human rights organization Association for the Defense of Human Rights (Asociación Pro-Defensa de los Derechos Humanos, APRODEH). Much of the hostile material published by Faisal was similar to that published in Lima in 1998 by sensationalist tabloids that were dedicated to the character assassination of leading opposition journalists. Press investigations during 1998 revealed several pieces of evidence linking the tabloids to the government. The fate of libel complaints lodged by seven journalists against Faisal also suggested government involvement. During the second week of May, Judges Elba Greta Minaya and Antonia Saquicuray, investigating the complaints, charged Faisal with defamation and ordered him to cease publishing the offending material. On the day after the ruling, the Lima Superior Court suddenly transferred the two judges to other positions, and the case was assumed by another judge, who promptly lifted the ban. On August 3, the judge dismissed the case against Faisal on the grounds that the material posted on the site was a

reproduction of articles earlier published in the Lima tabloids. Press investigations showed that the judge who issued the ruling was an interim appointee without tenure, who had been sanctioned repeatedly in the past for improper conduct, and that Faisal was a fugitive from justice in his own country.

On May 31, a new broadsheet appeared in Lima calling itself *La República*, which was strikingly similar to *La República* in appearance. It contained death threats against Mohme and well-known *La República* reporter Edmundo Cruz, using derisive language similar to notes delivered anonymously to government opponents and human rights defenders in earlier years.

Press freedoms were even more precarious in provincial towns, where journalists, particularly radio broadcasters, faced physical reprisals for their work. Seven journalists working for Radio Marañón, a local station run by the Catholic Church's Vicariate of Solidarity in Jaen and which broadcast on human rights themes, received death threats in March. A colleague, José Luis Linares Altamirano, narrowly escaped with his life on March 18, when two hooded gunmen forced their way into his home and shot him in the stomach. Two months before, Linares had received threats by telephone warning him to stop his human rights reports. Other radio and television journalists who received threats include nine working for different media in Huaraz, who were publicly attacked by the mayor, Waldo Ríos Salcedo, as "enemies of the people," and given an ultimatum to stop their critical comment.

Military officials in past years who had been accused of gross human rights violations continued to enjoy impunity. In May, IDL revealed in its monthly magazine *Idee* that Maj. Ricardo Hurtado Hurtado, who was sentenced by a military court for the massacre of sixty-nine peasants, including twenty-three children, in Accomarca in 1985, was still on duty in the sixth military region in Bagua. After initial military denials, President Fujimori confirmed that IDL was correct and gave assurances that Hurtado would be removed from active duty. In May, the Inter-American Commission on Human Rights agreed to investigate the La Cantuta case, a notorious crime of murder and "disappearance" in 1992 committed by members of the Colina Group, an army death squad. Information on the case to be considered by the commission included evidence from well-placed military sources that Montesinos and former army commander-in-chief Nicolás Hermoza Ríos, two members of the "triumvirate" that ruled Peru after Fujimori's 1992 coup, planned the crime. Members of the death squad convicted of the crime were released under a comprehensive government amnesty in 1995.

During 1999, the Inter-American Commission on Human Rights forwarded to the Inter-American Court of Human Rights the Ivcher case and a case challenging the 1997 dismissal of the Constitutional Court judges, on which negotiations for a friendly settlement had broken down. Both were very sensitive cases for the government. On June 3, the court ruled that the Peruvian government had to order a retrial of four Chileans sentenced to life imprisonment for treason by a faceless military court in 1994, on grounds that they had been denied due process and the right to a defense. Fujimori announced that his government had no intention of carrying out the court's sentence. The Supreme Council of Military Justice announced that it would be unable to implement the Inter-American Court's order. In a further step taken against the court, on July 7 Congress voted to remove Peru from the court's jurisdiction. The decision deprived Peruvians whose rights have been violated of the possibility of redress by the court. The Inter-American Court had, in fact, increasingly become a last bastion of defense for victims of human rights violations in Peru, given persistent government interference in the Peruvian judiciary and amnesty laws that prevented accountability for past human rights violations. The argument advanced by Fujimori for Peru's withdrawal, that implementation of the court ruling would lead to the release of thousands of sentenced terrorists, had no basis in fact and seriously misled the Peruvian public. In September, the court rejected Peru's attempt to revoke its recognition of jurisdiction, finding, "There is no norm in the American Convention [on Human Rights] that empowers States Parties to withdraw their declaration of acceptance of the compulsory jurisdiction of the Court."

Defending Human Rights

The people's defender, Jorge Santistevan, played a pivotal role in the defense of human rights standards, giving the institution he headed undisputed authority and credibility. It remained the only public institution noticeably free of government intervention. Nongovernmental human rights

organizations continued to campaign vigorously, their international credibility shielding them for the most part from attack by the government. However, they were not free from intimidation, which was occasionally violent.

Since 1998 Lola Flores had received anonymous threats for her work as a member of the Human Rights Committee of Moyobamba, department of San Martín. On March 13, as her husband, Estéban Ríos Serbán, was returning home by bicycle, he was met by two men dressed in black and wearing ski masks who demanded to know if his wife was involved with the Human Rights Committee. They struck him on the head with a stick, and when he tried to defend himself they shot at him twice. One bullet grazed his back and the other hit him in the shoulder. He managed to escape, and was eventually evacuated to hospital in Lima.

On June 3, municipal police discovered a box simulating a bomb under a tree opposite the Lima office of the Human Rights Commission (Comisión de Derechos Humanos, COMISEDH). The box contained three batteries connected by wires to a telephone. This organization also had an office in Ayacucho that had assumed the defense of victims of police torture. The hoax bomb had been planted on the day that trial proceedings against three policemen had been due to start.

The Role of the International Community

United Nations

In March the U.N. Committee on the Elimination of Racial Discrimination adopted its Concluding Observations on the reports submitted by Peru under the International Convention on the Elimination of All Forms of Racial Discrimination. Among its recommendations, the committee called on Peru to take measures to ensure Peru's disadvantaged groups enjoyment of all the rights protected by the convention, equality before the courts, and in the exercise of political rights.

Organization of American States

OAS Secretary-General César Gaviria failed to take a firm position in defense of the authority of the Inter-American Court or on Peru's obligation to respect its obligations under the American Convention on Human Rights. In a statement issued on July 17, while reaffirming the importance of compliance with the rulings of the court, Gaviria had only praise for the no-concessions policy against terrorism pursued by the Fujimori government. He considered it to have been "undoubtedly an effective policy which contributed in an important fashion to strengthening the rule of law in Peru," despite the conclusions both of the court and the commission that the policy violated fundamental human rights.

In September, referring to what he called a "step backward," Secretary-General Gaviria criticized the Peruvian government for withdrawing from the jurisdiction of the Inter-American Court of Human Rights; he called Peru's failure to implement the court's sentences an even more urgent problem to overcome.

European Union

In a statement released on July 16, the European Union "deeply regretted" Peru's withdrawal from the Inter-American Court of Human Rights, describing it as a "step backwards" in the country's progress on human rights, and pointing out that it would inevitably affect the confidence of investors in Europe, Peru's largest trade partner.

In June, at the meeting between the heads of state of the Andean Community of Nations and the E.U. held in Brazil, Peru welcomed the progress made in the political dialogue between the two regions based on the common purpose of strengthening peace, democracy, and respect for human rights.

United States

Concern in the U.S. Congress about the persistent erosion of the rule of law and violations of press freedom in Peru mounted in 1999, adding a new lever of pressure to that exerted by the State Department and Amb. Dennis Jett in Lima. On July 1, the House of Representatives Foreign Relations

Committee approved a motion to the effect that "the erosion of the independence of judiciary and electoral branches of the Government of Peru, the interference with freedom of the press, and the blatant intimidation of journalists in Peru constitute a threat to democracy in that country and are matters of concern for the United States." On the same day, the Senate Appropriations Committee passed a foreign aid bill for the fiscal year 2000 whose section on Peru read:

The Committee has repeatedly expressed concern about U.S. support for the Peruvian National Intelligence Service (SIN). The Committee continues to receive reports that investigations of allegations of corruption by SIN officials are routinely blocked, that the SIN has withheld information from U.S. officials, and that the SIN continues to harass and intimidate journalists and opponents of the ruling party. The Committee requests to be consulted prior to any decision to provide assistance to the SIN.

Although U.S. assistance to the SIN had been suspected for years, administration officials had always refused to confirm or deny the reports. The revelation was a shocking admission that, in the interests of the "war on drugs," the Clinton Administration had been cooperating with, and secretly funding, an organization whose involvement in grave human rights abuses had been recognized in successive State Department reports. The U.S. embassy in Lima insisted that assistance was limited to the provision of computer equipment and training for a drugs intelligence unit, amounting to U.S. \$34,000 in 1996, \$150,000 in 1997, and \$25,000 in 1998. Ambassador Jett denied that the unit had been engaged in operations or had any connection with human rights violations. He said that no more funds would be provided to the SIN in the current financial year, or in the future. The House of Representatives Appropriations Committee, debating the foreign aid bill in July, said that the SIN was not a reliable partner in the drug war as it was neither transparent nor accountable to civilian authorities, and was "involved in activities inconsistent with human rights, the rule of law and the development of democracy."

While a firm defender of Peruvian anti-narcotics efforts, U.S. Amb. Dennis Jett had consistently spoken up for human rights during his tour of duty, which ended in 1999.

World Bank

In April, the World Bank donated \$500,000 to the Office of the People's Defender to support its activities in defense of human rights in Peru.

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